

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X
O'NEIL PALMER,

Plaintiff,

-against-

THE CITY OF NEW YORK, DETECTIVE ERIC COX,
SHIELD NO. 2077, DETECTIVE HUMBERTO KIBEL,
SERGEANT CLIFFORD STRONG, DETECTIVE
DANIEL GUIDA, DETECTIVE ESSENCE JACKSON,
UNDERCOVER POLICE OFFICER # C0063 and
POLICE OFFICERS JOHN DOES #1-4 (names and
number of whom are unknown at present), and other
unidentified members of the New York City Police
Department,

Defendants.
----- X

SUMMONS

Index No.:

The Basis of Venue is:
Location of Incident

Plaintiff designates Kings
County as the place of trial.

To the above named Defendants:

You are hereby summoned to answer the verified complaint in this action, and to serve a copy of your answer, or, if the verified complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the verified complaint.

DATED: New York, New York
February 4, 2015

Yours, etc.



JACOBS & HAZAN, LLP.
DAVID M. HAZAN, ESQ.
Attorney for Plaintiff
11 Park Place, 10th Floor
New York, New York 10007
(212) 577-2690

TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
Detective Eric Cox, Shield No. 2077, Narcotics Borough Brooklyn South
Detective Humberto Kibel, Narcotics Borough Brooklyn South
Sergeant Clifford Strong, Narcotics Borough Brooklyn South
Detective Daniel Guida, Narcotics Borough Brooklyn South
Detective Essence Jackson, Narcotics Borough Brooklyn South
Undercover Police Officer # C0063, Narcotics Borough Brooklyn South

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O'NEIL PALMER,

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INDEX NO.:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiff O'NEIL PALMER, by his attorneys, Jacobs & Hazan, LLP, as and for his
Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On May 31, 2013 at approximately 6:45 p.m., plaintiff was lawfully sitting on a lawn chair in the private courtyard of his apartment building located at 2940 West 21st Street, Brooklyn, New York, when the individually named New York City police officer defendants, trespassed onto the private property where plaintiff was located, without cause or legal justification, unlawfully stopped, questioned, frisked, searched, falsely imprisoned, unlawfully seized, and falsely arrested plaintiff. Thereafter, the officers maliciously prosecuted plaintiff and denied plaintiff a right to a fair trial by initiating a prosecution against him, without probable cause by falsifying evidence, providing false, misleading and/or incomplete information to the DA's Office and by signing a Criminal Court complaint which contained false information about plaintiff. Those officers that did not physically touch plaintiff are liable for failing to intervene and stop the unlawful conduct against claimant that was being committed by their fellow officers. All criminal charges against

plaintiff were dismissed and sealed on December 20, 2013. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully stopped, questioned, frisked, searched, confined, falsely arrested, maliciously prosecuted, and, denied plaintiff the right to a fair trial, in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff O'Neil Palmer is a resident of the state of New York.
3. Detective Eric Cox, Shield No. 2077, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
4. Detective Eric Cox, Shield No. 2077, is and was at all times relevant herein, assigned to the Narcotics Borough Brooklyn South..
5. Detective Eric Cox, Shield No. 2077 is being sued in his individual and official capacity.
6. Detective Humberto Kibel, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
7. Detective Humberto Kibel, is and was at all times relevant herein, assigned to the Narcotics Borough Brooklyn South.
8. Detective Humberto Kibel is being sued in his individual and official capacity.
9. Sergeant Clifford Strong, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
10. Sergeant Clifford Strong, is and was at all times relevant herein, assigned to the Narcotics Borough Brooklyn South.
11. Sergeant Clifford Strong is being sued in his individual and official capacity.
12. Detective Daniel Guida, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
13. Detective Daniel Guida, is and was at all times relevant herein, assigned to the Narcotics Borough Brooklyn South.
14. Detective Daniel Guida is being sued in his individual and official capacity.
15. Detective Essence Jackson, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

16. Detective Essence Jackson, is and was at all times relevant herein, assigned to the Narcotics Borough Brooklyn South..

17. Detective Essence Jackson is being sued in his individual and official capacity.

18. Undercover Police Officer # C0063, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

19. Undercover Police Officer # C0063, is and was at all times relevant herein, assigned to the Narcotics Borough Brooklyn South..

20. Undercover Police Officer # C0063 is being sued in his individual and official capacity.

21. New York City Police Officers John Does #1-4 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

22. Police Officers John Does #1-4 are being sued in their individual and official capacities.

23. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

24. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

25. Plaintiff in furtherance of his causes of action brought pursuant to New York State law filed a Notice of Claims against the CITY OF NEW YORK, in compliance with the Municipal Law Section 50.

26. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claim.

27. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

28. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

29. By way of background, on May 31, 2013, at approximately 6:45 p.m., plaintiff was lawfully sitting on a lawn chair in the private courtyard of his apartment building located at 2940 West 21st Street, Brooklyn, New York, when the individually named New York City police officer defendants, trespassed onto the private property where plaintiff was located, without cause or legal justification, approached plaintiff and proceeded to unlawfully stop, seize and detain plaintiff without his consent, and without reasonable suspicion, probable cause, or any legal justification.

30. At no time prior to stopping plaintiff did the defendant police officers have any objective factual basis to believe plaintiff had committed a crime, was about to commit a crime, or was in the process of committing a crime.

31. At no time was plaintiff in possession of any illegal drugs, weapons, or contraband of any kind on May 31, 2013, nor did the defendant police officers have an objective reason to believe plaintiff possessed illegal drugs, weapons, or contraband of any kind.

32. Nevertheless, the defendant police officers unlawfully handcuffed plaintiff and falsely arrested him without legal justification or probable cause and detained plaintiff in front of his apartment building in handcuffs for approximately 45 minutes.

33. The individually named police officers unlawfully searched plaintiff's person without probable cause or any legal justification and did not locate any illegal drugs weapons or contraband as a result of the search.

34. Although, the stop, search and seizure of plaintiff by the police officers was unlawful, the individually named defendant police officers lied to plaintiff and told him that the reason they seized him was because he matched the description of a robbery suspect. The police officers' purported basis for plaintiff's seizure was wholly fabricated and plaintiff did not match the description of any robbery suspect.

35. Plaintiff was unlawfully placed in a van, against his will and locked in the van for approximately one or two hours as the van drove around Brooklyn.

36. Eventually plaintiff was brought to the 60th Precinct stationhouse whereat the defendant police officers unlawfully searched plaintiff again, unlawfully fingerprinted and photographed him and detained him in a holding cell for many hours.

37. Plaintiff was transported from the 60th Precinct to Brooklyn Central Booking on June 1, 2013 at approximately 4:30 a.m.

38. Based upon the false, misleading, and incomplete information provided to the District Attorney's Office by the defendant police officers and sworn to by the defendants in the criminal court complaint, defendants maliciously initiated a prosecution against plaintiff without probable cause, on June 1, 2013 when plaintiff was arraigned in Brooklyn Criminal Court and was falsely charged with several crimes.

39. Plaintiff was arraigned in Kings County Criminal Court on June 1, 2013 at approximately 11:50 a.m. at which time he was charged with crimes he did not commit and then released from custody on his own recognizance.

40. Plaintiff was forced to appear in Kings County Criminal Court on four occasions before all criminal charges terminated in plaintiff's favor when they were dismissed and sealed on December 20, 2013 after the District Attorney's Office moved to dismiss the charges.

41. At no time did plaintiff commit a crime, nor did the defendant police officers have any reason to believe he committed a crime on May 31, 2013.

42. The officers knew they lacked probable cause to arrest plaintiff May 31, 2013.

43. At no time on May 31, 2013 did the defendant police officers recover any drugs, weapons, or contraband of any kind from plaintiff, nor did anybody, including the individually named defendant police officers observe plaintiff hand another individual an unlawful substance.

44. Nevertheless, the defendant handcuffed plaintiff and falsely arrested him without legal justification or probable cause.

45. Some of the police officer defendants observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the unjustifiable stop, question, frisk, search, strip search, false arrest, false imprisonment, malicious prosecution, and denial of fair trial and due process rights to plaintiff.

46. There is a policy, practice or custom within the New York City Police Department, wherein New York City Police Officers illegally stop, question, frisk and search, individuals without a specific, articulable factual basis supporting a reasonable suspicion or probable cause to believe the individual had violated any law or ordinance.

47. As a result of defendant City of New York and the New York City Police Department's policy of unlawfully stopping, questioning, frisking and searching individuals, without probable cause or reasonably articulable suspicion, and the New York City Police Department's deliberate indifference about the fact that New York City Police Officers routinely engage in this misconduct and unlawful behavior, there is a pattern, policy, custom or practice of New York City Police Officers stopping, questioning, frisking and searching individuals without a factual basis supporting a legal reason.

48. A Federal Court has entered judgment against the City of New York and the NYPD after a Federal trial covering the time period of the underlying incident in this case and found that the City of New York and the NYPD had a policy, practice or custom within the New York City Police Department, wherein New York City Police Officers illegally and unconstitutionally stop, question, frisk and search, individuals without a specific, articulable factual basis supporting a reasonable suspicion or probable cause to believe the individual had violated any law or ordinance. See Floyd v. City of New York, 08-Civ. -1034 (SAS), Opinion and Order (S.D.N.Y. Aug. 12, 2013).

49. As a result of defendant City of New York and the New York City Police Department's policy of unconstitutionally stopping, questioning, frisking and searching individuals, which are conducted without probable cause or reasonably articulable suspicion, and the New York City Police Department's deliberate indifference about the fact that New York City Police Officers routinely conduct these stops and searches without reasonably articulable suspicion and/or probable cause, there is a pattern, policy, custom or practice of New York City Police Officers stopping, questioning, frisking and searching individuals without a factual basis supporting a legal reason to do so.

50. Some of the individually named police officer defendants observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the unjustifiable stop, question, frisk, search, false arrest, false imprisonment, malicious prosecution, deny plaintiff his due process rights and deny plaintiff the right to a fair trial and did nothing from stopping the violations from continuing.

51. The unlawful stop, question, frisk, search, false arrest, false imprisonment, malicious prosecution, denial of due process, denial of a fair trial, against plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment, Fifth Amendment, and Fourteenth Amendment Rights

52. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 51 with the same force and effect as if more fully set forth at length herein.

53. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully stopped, questioned, frisked, seized, unlawfully searched, falsely arrested, falsely imprisoned, maliciously prosecuted, subjected to denial of his due process rights and denied the right to a fair trial without probable cause in violation of plaintiff's right to be free of an unreasonable seizure and denial of due process under the Fourth and Fifth Amendment of the Constitution of the United States and to be

free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

54. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 53 with the same force and effect as if more fully set forth at length herein.

55. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

56. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

57. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

58. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

59. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Stop, Question, and Frisk

60. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 59 with the same force and effect as if more fully set forth at length herein.

61. The illegal approach, pursuit, stop, questioning and frisk employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

62. The conduct of defendants in stopping, frisking, and searching, plaintiff were performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

63. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

64. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

65. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

66. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Unlawful Search

67. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 66 with the same force and effect as if more fully set forth at length herein.

68. The illegal approach, pursuit, stop and search inside plaintiff's, pockets, inside of the waistband of his pants and underneath his clothing employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

69. Defendants lacked probable cause to search plaintiff.

70. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

71. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

72. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

73. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Malicious Prosecution

74. Plaintiff repeats and realleges paragraphs 1 through 73 as if fully set forth herein.

75. The acts and conduct of the defendants constitute malicious prosecution under the laws of the United States Constitution, State of New York and New York State common law.

76. Defendants commenced and continued a criminal proceeding against plaintiff.

77. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which he was prosecuted.

78. The prosecution and criminal proceedings terminated in plaintiff's favor on the aforementioned date.

79. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

80. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

81. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

SIXTH CAUSE OF ACTION

Denial of Right to Fair Trial

82. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 through 81 with the same force and effect as if fully set forth herein.

83. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Kings County District Attorney's Office.

84. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Kings County District Attorney's Office.

85. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Kings County District Attorney's Office.

86. In withholding/creating false evidence against plaintiff O'Neil Palmer and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to a fair trial under the New York State Constitution and under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

87. As a result of the foregoing, plaintiff O'Neil Palmer, sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of his constitutional rights.

88. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

89. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

SEVENTH CAUSE OF ACTION

Failure to Intervene

90. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 89 with the same force and effect as if more fully set forth at length herein.

91. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

92. Defendants failed to intervene to prevent the unlawful conduct described herein.

93. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

94. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

95. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

EIGHTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

96. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 95 with the same force and effect as if more fully set forth at length herein.

97. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

NINTH CAUSE OF ACTION

Negligence

98. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 97 with the same force and effect as if more fully set forth at length herein.

99. Defendants owed a duty of care to plaintiff.

100. Defendants breached that duty of care by unlawfully stopping, questioning, frisking, falsely arresting, illegally searching, maliciously prosecuting, assaulting and battering plaintiff.

101. As a direct and proximate cause of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

102. All of the foregoing occurred without any fault or provocation by plaintiff.

103. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

TENTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

104. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 103 with the same force and effect as if more fully set forth at length herein.

105. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to

plaintiff, O'Neil Palmer. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

106. As a result of the foregoing, plaintiff was deprived of liberty and sustained great emotional injuries.

107. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

ELEVENTH CAUSE OF ACTION

Assault

108. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 107 with the same force and effect as if more fully set forth at length herein.

109. Defendants, their agents, servants and employees, acting within the scope of his employment, intentionally, willfully and maliciously assaulted plaintiff in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the plaintiff, and that such acts caused apprehension of such contact in the plaintiff.

110. Defendants were at all times an agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

111. The City, as the employer of defendants, is responsible for his wrongdoing under the doctrine of respondeat superior.

TWELVTH CAUSE OF ACTION

Battery

112. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 111 with the same force and effect as if more fully set forth at length herein.

113. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously battered plaintiff, when they, in a hostile and/or offensive manner struck plaintiff without his consent and with the intention of causing harmful and/or offensive bodily contact to the plaintiff and caused such battery.

114. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York and the New York City Police Department, which are therefore responsible for his conduct.

115. The City, as the employer of defendants, is responsible for his wrongdoing under the doctrine of respondeat superior.

THIRTEENTH CAUSE OF ACTION

Municipal Liability under 42 U.S.C. § 1983

116. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 115 with the same force and effect as if more fully set forth at length herein.

117. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of defendant City of New York, which is forbidden by the Constitution of the United States.

118. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department included, but were not limited to, illegally stopping, questioning, searching, and arresting individuals without a specific, articulable factual basis supporting reasonable suspicion and/or probable cause that plaintiff committed a crime and fabricating allegations against an individual to justify the amount of force used during an arrest, as well as inadequate screening, hiring, retaining, training, and supervising its employees with respect to these issues.

119. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the violation of plaintiff's rights as described herein. As a result of the failure of defendant City of New York and the New York City Police Department to properly recruit, screen, train, discipline, and supervise its officers, including the individual defendants, defendant City of New York has tacitly authorized, ratified, and has been deliberately indifferent to, the acts and conduct complained of herein.

120. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the Constitutional violations suffered by plaintiff as alleged herein.

121. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by plaintiff as alleged herein.

122. As a result of the foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department, plaintiff was unlawfully stopped, questioned, searched and arrested.

123. Defendants collectively and individually, while acting under color of state law were directly and actively involved in violating plaintiff's constitutional rights.

FOURTEENTH CAUSE OF ACTION

Municipal Liability under 42 U.S.C. § 1983 for Policy of Unconstitutionally Stopping, Questioning, Frisking, and Searching Individuals in violation of the Fourth and Fourteenth Amendments to the United States Constitution

124. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 123 with the same force and effect as if more fully set forth at length herein

125. A Federal Court has already entered judgment against the City of New York after a trial and found that for a many years, including the time period of June 5, 2013, the date plaintiff was arrested, defendant City of New York and the NYPD had a policy, practice or custom within the New York City Police Department, wherein New York City Police Officers illegally and unconstitutionally stop, question, frisk and search, individuals without a specific, articulable factual basis supporting a reasonable suspicion or probable cause to believe the individual had violated any law or ordinance. See Floyd v. City of New York, 08-Civ. -1034 (SAS), Opinion and Order (S.D.N.Y. Aug. 12, 2013).

126. A Federal Court has already entered judgment against the City of New York and the NYPD after a Federal trial and found that the City of New York and the NYPD had a policy, practice or custom within the New York City Police Department, wherein at the time of the underlying incident in this case, New York City Police Officers illegally and unconstitutionally stop, question, frisk and search, individuals without a specific, articulable factual basis supporting a reasonable suspicion or probable cause to believe the individual had violated any law or ordinance. See Floyd v. City of New York, 08-Civ. -1034 (SAS), Opinion and Order (S.D.N.Y. Aug. 12, 2013).

127. As a result of defendant City of New York and the New York City Police Department's policy of unconstitutionally stopping, questioning, frisking and searching individuals, which are conducted without probable cause or reasonably articulable suspicion, and the New York City Police Department's deliberate indifference about the fact that New York City Police Officers routinely conduct these stops and searches without reasonably articulable suspicion and/or probable cause, there is a pattern, policy, custom or practice of New York City Police Officers stopping, questioning, frisking and searching individuals without a factual basis supporting a legal reason to do so.

128. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of defendant City of New York, which is forbidden by the Fourth Amendment to the Constitution of the United States.

129. The aforementioned customs, policies, usages, practices, procedures and rules devised, implemented, enforced, promoted, encouraged, and sanctioned by the City of Yonkers, including but not limited to : (a) the failure to adequately and properly screen, train, and supervise New York City Police Officers; (b) the failure to properly and adequately monitor and discipline New York City Police Officers; and (c) the overt and tactical encouragement and sanctioning of, and the failure to rectify, the New York City Police Departments suspicionless stops, seizures, questions, frisks, searches, and arrests, for trespass into a privately owned apartment building.

130. The City of New York has acted with deliberate indifference to the Fourth Amendment rights of plaintiff and other individuals. As a direct and proximate result of the acts and omissions of the City of New York, plaintiff has been deprived of his rights under the Fourth and Fourteenth Amendments to the United States Constitution.

131. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the Constitutional violations suffered by plaintiff as alleged herein.

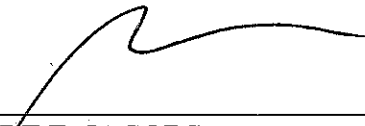
JURY DEMAND

132. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff O'Neil Palmer demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorney's fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
February 4, 2015

By: 

STUART E. JACOBS
DAVID M. HAZAN
JACOBS & HAZAN, LLP
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11 Park Place, 10th Floor
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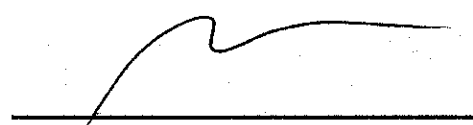
TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
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Undercover Police Officer # C0063, Narcotics Borough Brooklyn South

ATTORNEY'S VERIFICATION

STUART E. JACOBS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
February 4, 2015



STUART E. JACOBS